

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF KHAMROYEV AND OTHERS v. RUSSIA

(Applications nos. 1770/20 and 20 others –
see appended list)

JUDGMENT

STRASBOURG

27 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Khamroyev and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 6 April 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants of public assemblies having taken place in Moscow. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention. Some applicants also made the same complaints under Article 10; however, these complaints fall to be examined under Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February

2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-23, 10 April 2018; *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of the organisers or participants of public events; *Teslenko and Others v. Russia*, nos. 49588/12 and 3 others, §§ 72-74 and 81-82, 5 April 2022, concerning in particular administrative escorting to and/or detention in a police station beyond three hours for non-custodial offences, without substantiating the impossibility to compile an offence report at the rally; *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in judicial proceedings governed by the Federal Code of Administrative Offences (CAO); *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-215, 26 April 2016, concerning disproportionate measures against solo-demonstrators).

V. REMAINING COMPLAINTS

14. Having regard to its findings above, the Court does not consider it necessary to examine separately the remaining complaints raised by some of the applicants under Article 6 of the Convention about the fairness of the administrative-offence proceedings in their cases.

15. In applications nos. 1770/20, 7113/20 and 7148/20 the applicants also raised other complaints under the Convention. The Court has examined these complaints and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, they either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation. It follows that this part of applications nos. 1770/20, 7113/20 and 7148/20 must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

17. Regard being had to the documents in its possession and to its case-law (see *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the dispersal of the public assemblies and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *decides* that there is no need to examine separately the remaining complaints under Article 6 of the Convention about other aspects of the fairness of the administrative-offence proceedings and *finds* the remainder of applications nos. 1770/20, 7113/20 and 7148/20 inadmissible;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention concerning the dispersal of the public assemblies;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

7. *Dismisses* the reminder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 27 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention (disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name and Date of the public event	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, costs, and expenses (in euros)[1]
1.	1770/20 18/12/2019	**Bakhrom Mardonovich KHAMROYEV** 1963	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	04/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. on 03/08/2019 to 2.00 p.m. on 05/08/2019 (the applicant remained detained even after the record of administrative offence had been drawn up); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/10/2019; Art. 10 (2)- disproportionate measures against solo demonstrators. Picketing on 17/04/2019 in Moscow; fine of RUB 15,000; final decision: Moscow City Court, 12/08/2019	5,000
2.	2596/20 11/12/2019	**Matvey Mikhaylovich BAGROV** 1991	Savelyev Anton Alekseyevich Domodedovo	Manifestation for fair elections to Mosgorduma Moscow	Article 20.2 § 5 of CAO	fine of RUB 15,000	08/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name and Date of the public event	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, costs, and expenses (in euros)[1]
				03/08/2019				6.00 p.m. on 03/08/2019 to 01.00 a.m. on 04/08/2019; the time indicated in the record was at variance with the real time of the applicant's deprivation of liberty; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 08/10/2019	
3.	7113/20 25/01/2020	**Nikolay Nikolayevich SUKHOVEY** 1978	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	08/10/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 08/10/2019	3,000
4.	7144/20 25/01/2020	**Andrey Anatolyevich ROMASHKIN** 1991	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	30/08/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.45 p.m. to 12.00 p.m. on 10/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/08/2019	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name and Date of the public event	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, costs, and expenses (in euros)[1]
5.	7148/20 25/01/2020	**Sergey Vladimirovich KASHIRIN** 1989	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	12/09/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 12/09/2019	3,000
6.	9493/20 12/02/2020	**Aleksey Yuryevich PARAKHIN** 1997	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 8 of CAO	community service of 50 hours	30/09/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Moscow City Court, 12/08/2019, 30/09/2019 and 04/09/2019; Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": 1) from 4.30 p.m. on 09/09/2018 to 00.30 a.m. on 10/09/2018 (while the administrative offence record was drawn up only on 20/09/2018), 2) from 4.30 p.m. on 27/07/2019 to 00.30 a.m. on 28/07/2019 (while the administrative offence record was drawn up only on 13/08/2019), 3) from 2.40 p.m. on 03/08/2019 to 2.30 p.m. on 05/08/2019 (the applicant remained in detention event after the administrative offence record was drawn up)	6,000
				Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 19.3 § 1 of CAO	detention of 15 days	12/08/2019		
				Manifestation against the pension reform Moscow, 09/09/2018	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	04/09/2019		

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7.	9501/20 12/02/2020	**Arsen Rimovich SALIMOV** 1995	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 19.3 § 1 of CAO	administrative detention of 7 days	12/08/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.45 p.m. on 03/08/2019 to 5.50 p.m. on 05/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 12/08/2019	5,000
8.	9506/20 12/02/2020	**Mikhail Ivanovich KORESHKOV** 1979	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	18/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.30 p.m. on 03/08/2019 to 4.00 a.m. on 04/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 18/09/2019	4,000
9.	10722/20 07/02/2020	**Sergey Mikhaylovich MARKOV** 1961	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow	Article 20.2 § 5 of CAO	fine of RUB 10,000	04/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.55 p.m. to 9.00 p.m. on 03/08/2019; no	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name and Date of the public event	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, costs, and expenses (in euros)[1]
				03/08/2019				report on the applicant's administrative arrest was drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/10/2019	
10.	10745/20 07/02/2020	**Sergey Mikhaylovich BOBYSHKIN** 1987	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 18,000	18/11/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. to 9.00 p.m. on 03/08/2019; no report on the applicant's administrative arrest was drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 18/11/2019	4,000
11.	10751/20 22/02/2020	**Daniil Ruslanovich RAZZHIVIN** 1993	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	16/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.30 p.m. on 03/08/2019 to 2.30 a.m. on 04/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name and Date of the public event	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, costs, and expenses (in euros)[1]
								the administrative-offence proceedings – final decision: Moscow City Court, 16/09/2019	
12.	10764/20 22/02/2020	**Artur Serezhayevich KHACHATRYAN** 1987	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	06/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.00 p.m. on 03/08/2019 to 4.30 a.m. on 04/08/2019; the applicant spent more than 3 hours in the police van before having been brought to the police station; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 06/09/2019	4,000
13.	11284/20 07/02/2020	**Aleksey Igorevich SAMARIN** 1989	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	04/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 02.40 p.m. to 10.40 p.m. on 03/08/2019, while the record of administrative offence was drawn up only on 06/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/09/2019	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name and Date of the public event	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, costs, and expenses (in euros)[1]
14.	11293/20 07/02/2020	**Dmitriy Vladimirovich VILSHANSKIY** 1991	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	06/11/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.45 p.m. on 03/08/2019 to 0.00 a.m. on 04/08/2019; the applicant spent more than 3 hours in the police van before having been brought to the police station; the record of administrative offence was drawn up only on 06/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 06/11/2019	4,000
15.	14213/20 05/03/2020	**Dmitriy Yuryevich VESYUTOV** 1985	Bayturina Svetlana Nikolayevna Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	06/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 04.05 p.m. to 9.50 p.m. on 03/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 06/09/2019	4,000
16.	14215/20 05/03/2020	**Aleksey Sergeyevich TETYUYEV** 1977	Bayturina Svetlana Nikolayevna Moscow	Manifestation for fair elections to Mosgorduma	Article 20.2 § 5 of CAO	fine of RUB 10,000	06/09/2019	Art. 5 (1) – unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name and Date of the public event	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, costs, and expenses (in euros)[1]
			Bochilo Anna Yevgenyevna Barnaul	Moscow 03/08/2019 Manifestation in support of A. Navalnyy Moscow 23/01/2021	Article 20.2 § 5 of CAO	fine of RUB 20,000	01/06/2021	offence; detention in excess of 3 hours and without "exceptional circumstances": 1) from 5.45 p.m. to 9.00 p.m. on 03/08/2019 and 2) from 01.50 p.m. to 6.00 p.m. on 23/01/2021; in both cases no record of the applicant's administrative arrest was drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Moscow City Court, 06/09/2019 and 01/06/2021	
17.	28052/20 26/06/2020	**Aleksandr Aleksandrovich VOLKOV** 1984	Memorial Human Rights Centre Moscow	Manifestation in support of I. Golunov Moscow 12/06/2019 Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO Article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 15,000	08/06/2020 28/11/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": 1) from 01.00 p.m. to 8.15 p.m. on 12/06/2019, and 2) from 2.30 p.m. to 8.30 p.m. on 27/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Moscow City Court, 28/11/2019 and 08/06/2020	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name and Date of the public event	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, costs, and expenses (in euros)[1]
18.	28171/20 26/06/2020	**Anton Vladimirovich ZHDANOV** 1992	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	28/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 02.10 p.m. to 10.20 p.m. on 03/08/2019, while the record of administrative offence was drawn up only on 06/08/2019; no report on the applicant's administrative arrest was drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/10/2019	4,000
19.	28303/20 03/07/2020	**Vadim Nikolayevich SEVOSTYANOV** 1987	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	02/12/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 03.35 p.m. to 11.40 p.m. on 03/08/2019, while the record of administrative offence was drawn up only on 06/08/2019; no report on the applicant's administrative arrest was drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 02/12/2019	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name and Date of the public event	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, costs, and expenses (in euros)[1]
20.	28306/20 03/06/2020	**Sergey Aleksandrovich VYRODOV** 1974	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	06/11/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 03.25 p.m. to 10.55 p.m. on 03/08/2019, no report on the applicant's administrative arrest was drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 06/11/2019	4,000
21.	28334/20 03/07/2020	**Yakov Semenovich DONCHENKO** 1995	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	14/11/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 03.30 p.m. on 03/08/2019 to 00.30 a.m. on 04/08/2019, while the record of administrative offence was drawn up only on 06/08/2019, no report on the applicant's administrative arrest was drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 14/11/2019	4,000

[1] Plus any tax that may be chargeable to the applicants.